state legislative assembly. A similar council can also be established in a state having scheduled tribes but not scheduled areas therein, if the President so directs.

4. ***Law applicable to Scheduled Areas:*** The governor is empowered to direct that any particular act of Parliament or the state legislature does not apply to a scheduled area or apply with specified modifications and exceptions. He/she can also make regulations for the peace and good government of a scheduled area after consulting the tribes advisory council. Such regulations may prohibit or restrict the transfer of land by or among members of the scheduled tribes, regulate the allotment of land to members of the scheduled tribes and regulate the business of money-lending in relation to the scheduled tribes. Also, a regulation may repeal or amend any act of Parliament or the state legislature, which is applicable to a scheduled area. But, all such regulations require the assent of the President.

The Constitution requires the President to appoint a commission to report on the administration of the scheduled areas and the welfare of the scheduled tribes in the states. He/she can appoint such a commission at any time but compulsorily after ten years of the commencement of the Constitution. Hence, a commission was appointed in 1960. It was headed by U.N. Dhebar and submitted its report in 1961. After four decades, the second commission was appointed in 2002, under the chairmanship of Dilip Singh Bhuria. It submitted its report in 2004.

Administration Of Tribal Areas

The Constitution, under Sixth Schedule, contains special provisions for the administration of tribal areas in the four north-eastern states of Assam, Meghalaya, Tripura and Mizoram. The rationality behind the special arrangements in respect of only these four states lies in the following:

In order to preserve the democratic traditions and cultural diversity of the people in these regions, the framers of the constitution, conceived of the instrument of tribal self-rule. This stands embodied in the Sixth Schedule that accommodated the collective aspirations of tribal communities within the broader framework of a democratic political system. The other regions of the country with large population of tribals, are covered by the provisions of the Fifth Schedule. This is totally different from the Sixth Schedule regions where the emphasis is on self-rule because many of the communities inhabiting these areas had ruled themselves until the British subjugated them in the 19th Century.[3]

At present, there are ten tribal areas in the four north-eastern states of Assam, Meghalaya, Tripura and Mizoram. These are mentioned in Table 42.1.

The various features of administration contained in the Sixth Schedule are as follows:

1. The tribal areas in the four states of Assam, Meghalaya, Tripura and Mizoram have been constituted as autonomous districts. But, they do not fall outside the executive authority of the state concerned.

2. The governor is empowered to organise and re-organise the autonomous districts. Thus, he/she can increase or decrease their areas or change their names or define their boundaries and so on.

3. If there are different tribes in an autonomous district, the governor can divide the district into several autonomous regions.